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CASE #	CASE NAME	HEARING NAME
CVRI2502298	LILES VS SILENT VALLEY CLUB, INC.	MOTION TO COMPEL FURTHER RESPONSES TO DOCUMENT REQUESTS AND REQUEST FOR RELIEF FROM THE INFORMAL DISCOVERY CONFERENCE REQUIREMENT

Tentative Ruling:

Factual/Procedural Context

First Amended Complaint (FAC) & Allegations.

This is an employment discrimination and retaliation case Plaintiff Robin Liles initiated against her employer, Defendant Silent Valley Club, Inc. The FAC alleges Plaintiff is a gay woman, which Defendant's employees and agents knew, to include Tracy Camacho ("Camacho") in Human Resources and Park Director Cindy Slocum ("Slocum"). Defendant, including Slocum, subjected Plaintiff to retaliatory harassment, unequal treatment, setting Plaintiff up to fail, micromanaging, failing to conduct an appropriate and timely investigation in response to her complaints about harassment, discrimination, and retaliation, failing to take corrective action, preferential treatment to other employees, denying Plaintiff other benefits and privileges of employment, and ultimately terminating Plaintiff's employment in August 2024.

The operative FAC, filed January 20, 2026, asserts causes of action for:

- (1) FEHA Sexual Orientation, Sex, Gender and Gender Expression/Sex Stereotype Discrimination
- (2) FEHA Retaliation
- (3) FEHA Failure to Prevent/Remedy Discrimination and/or Retaliation
- (4) Violation of California labor Code § 1102.5

An Informal Discovery Conference ("IDC") was held in chambers on April 24, 2026.

Jury Trial is currently scheduled on July 24, 2026.

Motion

Plaintiff asserts she attempted to set up another IDC, but there was no availability until July. (Escalante Decl., ¶11.) Plaintiff requests relief from the IDC requirement given the impending July trial date. As to the merits, Plaintiff moves to compel further responses to her written discovery propounded on March 26, 2026. Plaintiff explains that at the April IDC, the Court agreed that Plaintiff was entitled to

discovery relating to Nikki Rotter (“Rotter”), who was also mistreated by Slocum, Defendant has refused to produce such discovery, i.e., the investigative report and investigation into Slocum’s conduct. Plaintiff argues Defendant’s privacy objection lacks merit given Rotter and Defendant’s representatives already testified to the misconduct. Plaintiff contends the requested discovery directly establishes discriminatory and retaliatory intent and a basis for punitive damages.

In opposition, Defendant argues the entirety of Plaintiff’s complaint alleged issues about Slocum’s alleged micromanaging, not about discrimination, harassment, or retaliation, making Plaintiff’s discovery irrelevant. Defendant asserts Plaintiff seeks records that are protected by the constitutional right to privacy, and Rotter is not a proper “comparator” employee for comparator evidence.

A reply was due on June 12, 2026, but none was found on eCourt as of June 16, 2026.

Analysis

I. Meet and Confer

A motion to compel further responses to an RFP “shall be accompanied by a meet and confer declaration under Section 2016.040.” (Code Civ. Proc. § 2031.310, subd. (b)(2).) A meet and confer declaration “shall state facts showing a reasonable and good faith attempt, **either in person, by telephone, or by videoconference**, to informally resolve each issue presented by the motion.” (Code Civ. Proc., § 2016.040, subd. (a), emphasis added.) The meet and confer requirement “is designed to encourage the parties to work out their differences informally so as to avoid the necessity for a formal order.” (*Townsend v. Superior court* (1998) 61 Cal.App.4th 1431, 1435.) It requires “a serious effort at negotiation and informal resolution,” including attempts by counsel “to talk the matter over, compare their views, consult, and deliberate.” (*Id.* at 1438-1439.)

Here, the parties complied. (Escalante Decl., ¶¶8, 10.)

II. Standard

Under Code of Civil Procedure 2031.210, subdivision (a), a party to whom a demand for inspection, copying, testing or sampling has been directed shall respond separately to each item or category of item by: (1) a statement that the party will comply with the particular demand; (2) a representation that the party lacks the ability to comply with the demand; (3) or an objection to the particular demand. Code of Civil Procedure section 2031.220 requires the party responding to a demand for documents to state what will be produced and confirm inclusion of all non-objected documents or items in their possession, custody or control.

Upon receipt of discovery responses, the propounding party may move for an order compelling further responses if it deems the responses to be deficient because of objections that are improper or too general or evasive responses. (Code Civ. Proc., § 2031.310.) A party bringing a motion to compel further responses to an RFP must establish “specific facts showing good cause justifying the discovery sought by the demand.” (*Id.* at subd. (b)(1).) Once good cause is shown, the burden shifts to the responding party to justify its objection. (*Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98.)

III. Merits

At issue at RFP Nos. 1 & 6 (Set Two), which seeks documents relating to complaints and investigations about Cindy Slocum.

Here, Plaintiff establishes good cause justifying the discovery sought. Contrary to Defendant’s claim, the FAC asserts claims for discrimination (sex, gender, gender expression, sexual orientation), retaliation, and failure to prevent in violation of FEHA. (Compl., ¶¶15-16, 22, 32, 38.) Plaintiff alleges she is a gay woman who was subject to discrimination, harassment, and retaliation by Slocum, a straight woman. Plaintiff was ultimately terminated prior to Defendant’s completion of investigation into Plaintiff’s adverse treatment. Rotter, a straight woman, was subject to comments about her age. Although Rotter complained about being wrongfully terminated by Slocum, Slocum immediately reinstated Rotter. Plaintiff presents evidence that there is a comprehensive 90-page report of Defendant’s investigation into Rotter’s complaints of wrongful termination that Defendant refuses to produce in response to the RFPs. (Escalante Decl., Exh. A, Hunter Depo., pg. 30:6-18.) Plaintiff argues the discovery sought reflects Defendant treated Plaintiff less favorably despite the fact Rotter engaged in the same protected activity as Plaintiff. (*Id.*, pg. 25:12-20, pg. 32:17-33:10.) Indeed, an investigation into Rotter’s complaint was done. Plaintiff asserts the discovery confirms the discriminatory and retaliatory intent and basis for punitive damages in Plaintiff’s case.

Defendant’s arguments that Plaintiff’s RFPs are irrelevant and fail as comparator evidence are thus meritless. Defendant’s privacy objection also fails because the requested information is directly relevant to Defendant’s disparate treatment of Plaintiff who engages in the same protected activity as Potter, intent, and potential pattern or practice. Thus, the information falls within the broad scope of discovery. While third-party privacy interests may be implicated, those concerns can be adequately addressed through a protective order and appropriate redactions, which Defendant has not availed itself of. Thus, the Court **OVERRULES** Defendant’s privacy objections and **GRANTS** Plaintiff’s motion.